

TENTATIVE RULING FOR CIVSB2604328
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Padilla et al v. Bridge Management Inc., et al

Motion: Demurrer and Strike

Movant: Bridge Management Inc. (Bridge) and SPSSM Investments-VI,LP (SPSSM),
collectively, (Defendants)

Respondent: Eric Padilla and Gladys Padilla (Defendants)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On February 10, 2020, Plaintiffs filed suit against Defendants asserting claims for (1) violation of Civil Code section 1942.4, (2) tortious breach of the warranty of habitability, (3) private nuisance, (4) violation of Business & Professions Code section 17200, et seq. (5) negligence, (6) breach of the covenant of quiet enjoyment, (7) intentional infliction of emotional distress or IIED, (8) negligence per se, (9) violation of the Consumer Legal Remedies Act or the CLRA, (10) premises liability, and (11) negligent hiring, retention, and supervision. Defendants' demurrer to the first, seventh eighth and ninth causes of action. Defendants' also move to strike 33 total paragraphs from the Complaint in addition to the prayers for punitive damages, statutory damages, restitution, and reasonable attorney's fees. Plaintiff opposes.

ANALYSIS

Meet and Confer

Before filing a demurrer and motion to strike, the moving party shall meet and confer, at least 5 days before a responsive pleading is due, in person, by telephone, or by video conference, with the opposing party to see if a resolution can be reached on the objections to the pleading. (Code Civ. Proc., §§430.41, subd. (a), 435.5, subd. (a)(1)-(2).) With the demurrer and strike motion, the moving party shall submit a declaration stating (a) how the parties met and conferred, and no resolution was reached, or (b) the opposing party failed to respond to the demurring party's meet and confer requests or failed to meet and confer in good faith. (Code Civ. Proc., §§430.41, subd. (a)(3), 435.5, subd. (a)(3).)

Attorney Branden D. Frankel (Frankel) filed a declaration only states a letter was sent to Plaintiff's counsel concerning the alleged deficiencies in their pleadings. There is no mention of

an in person, telephonic or virtual conference. To the extent there was no in person, telephonic, or video conference meet and confer, the efforts were not Code-compliant, and the Court can take the matters off calendar. (Local Rule 560) Counsel should be prepared to discuss the full extent of the meet and confer efforts. The court reserves the right to take both motions off calendar.

General Demurrer

A general demurrer challenges a complaint for failure to state a cause of action under Code of Civil Procedure section 430.10, subdivision (e). It is granted only where the facts alleged on the face of the complaint fail to state a valid claim under any possible legal theory entitling the plaintiff to relief against the demurring defendant. (*Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The plaintiff may be mistaken as to the nature of the case or the legal theory on which he or she can prevail, but if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial § 7:41 (hereafter Weil & Brown), citing *Quelimane Co. v. Stewart Tile Guaranty Co.* (1989) 19 Cal.4th 26, 38-39.)

All that is necessary as against a general demurrer is to plead facts showing that the plaintiff may be entitled to some relief. In passing upon the sufficiency of a pleading, its allegations must be liberally construed with a view to substantial justice between the parties.” (*Fundin v. Chicago Pneumatic Tool Co.* (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

The complaint includes matters shown in attached exhibits and incorporated by reference. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) A demurrer predicated on a complaint’s failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)) should be granted only when the facts alleged on the face of the complaint fail to state *any* valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

Leave to Amend

Courts are very liberal in permitting amendments, not only where a complaint is defective in form, but also where substantive defects are apparent: “Liberality in permitting amendment is

the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any *reasonable possibility* that plaintiff can state a good cause of action. (*Bounds v. Superior Court* (2014) 229 Cal.App.4th 468, 484 [court should grant leave to amend if in all probability plaintiff will cure defect].)

However, no abuse of discretion will be found unless a potentially effective amendment is “both apparent and consistent with the plaintiff’s theory of the case.” (*Camsi IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1542.) “Leave to amend *should be denied* where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436 (emphasis added); *Schonfeldt v. State of Calif.* (1998) 61 Cal.App.4th 1462, 1465 [if no liability as a matter of law, leave to amend should not be granted].)

First Cause of Action

California Civil Code Section 1942.4 states in pertinent part:

A landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of [Section 1161 of the Code of Civil Procedure](#), if all of the following conditions exist prior to the landlord’s demand or notice:

The dwelling substantially lacks any of the affirmative standard characteristics listed in [Section 1941.1](#) or violates [Section 17920.10 of the Health and Safety Code](#), or is deemed and declared substandard as set forth in [Section 17920.3 of the Health and Safety Code](#) because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling. A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord’s agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

The conditions were not caused by an act or omission of the tenant or lessee in violation of [Section 1929](#) or [1941.2](#). (CC§1942.4(a)(1)(2)(3)(4))

The Complaint indicates that, among other problems, the plumbing was constantly clogged, the windows were missing screens, and the flooring was damaged, detached, and mold infested. (Compl. at ¶ 105.) These conditions violate section 1941.1. Plaintiffs further contend

that the conditions were not caused by them. (Compl. at ¶ 106.) Finally, the Complaint indicates that a public housing officer and health inspector provided Defendants with written notice of their obligation to repair the “prohibited conditions” and that Defendants did not repair the conditions within 35 days. Furthermore, it is alleged that Defendants continued to demand and collect rent. (Compl. at ¶¶ 107-109.) These allegations are sufficient to support the cause of action.

Seventh Cause of Action

“The elements of the tort of intentional infliction of emotional distress are: ‘(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct....’” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903; *Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1001.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Kiseskey v. Carpenters’ Trust for So. California* (1983) 144 Cal.App.3d 222, 230.)

A landlord’s knowing, intentional, and willful failure to correct a defective condition may sufficiently state extreme and outrageous conduct. (*Burnett v. Chimney Sweep* (2004) 123 Cal.App.4th 1057, 1069.) The alleged conditions of Plaintiffs’ residence are severe. (See Compl. at ¶ 168.) The Complaint also indicates Defendants were aware of the conditions, and they had the means, opportunity, and ability to abate the conditions, but failed to do so despite knowing the impact and effect it was having on Plaintiffs and their family. (Compl. at ¶¶ 102, 106, 118, and 167.) The allegations further indicate Defendants’ conduct was extreme and outrageous and that they acted with a reckless disregard as to the probability that Plaintiffs would suffer emotional distress—allegations which are not conclusory in light of the specific facts alleged. (Compl. at ¶¶ 171-172.) Finally, the Complaint indicates Plaintiffs suffered severe emotional distress that was caused by Defendants’ conduct. (Compl. at ¶ 173.) The claim is sufficiently pled to withstand a demurer.

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Eighth Cause of Action

“The elements of a cause of action for negligence are well established. They are ‘(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.’” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

“The negligence per se doctrine is codified in Evidence Code section 669, subdivision (a), under which negligence is presumed if the plaintiff establishes four elements: (1) the defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.’ ‘The burden is on the proponent of a negligence per se instruction to demonstrate that these elements are met.’” (*Taulbee v. EJ Distribution Corp.* (2019) 35 Cal.App.5th 590, 596.)

In the demurrer, Defendants merely note that negligence per se “is not a separate cause of action but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (*Johnson v. Honeywell Internat. Inc.* (2009) 179 Cal.App.4th 549, 555.) However, under the “duty to liberally construe pleadings,” multiple “causes of action” that are not truly distinct causes of action but which are alternative counts or theories of liability should be treated as such. (*Landeros v. Flood* (1976) 17 Cal.3d 399, 413 [“common law negligence and statutory liability may be pleaded in a single count”]; *Bay Cities Paving & Grading, Inc. v. Lawyers’ Mutual Ins. Co.* (1993) 5 Cal.4th 854 [“Count” means a group of related paragraphs in the complaint setting forth a legal theory of recovery. Counts “are merely ways of stating the same cause of action differently”]; CACI 418 [providing a jury instruction for negligence per se].)

Ninth Cause of Action

The Consumer Legal Remedies Act (CLRA) makes it unlawful to represent that goods or services are of a particular standard, quality, or grade if they are of another. (Civ. Code, § 1770.) However, the “unfair methods of competition and unfair or deceptive acts or practices” must relate to “a transaction intended to result or that results in the sale or lease of goods or services to any consumer....” (*Ibid.*) The term “goods” means “tangible chattels bought or leased for use primarily for personal, family, or household purposes ... including goods that, at the time of the sale or subsequently, are to be so affixed to real property as to become a part of real property, whether or

not they are severable from the real property.” (Civ. Code, § 1761, subd. (a).) CLRA claims, like UCL claims “must be stated with reasonable particularity, which is a more lenient pleading standard than is applied to common law fraud claims.” (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261, *as modified on denial of reh'g* (Feb. 22, 2018).)

Furthermore, 30 days before commencing an action for damages under the CLRA, the consumer must notify the person alleged to have employed the unlawful conduct in writing and demand correction. (Civ. Code, § 1782, subd. (a).) Civil Code section 1782, subdivision (b), then provides that “no action for damages may be maintained under section 1780 if an appropriate correction, repair, replacement or other remedy is given or agreed to be given within a reasonable time, to the consumer within 30 days after receipt of the notice.” However, an action for injunctive relief may be commenced without compliance with the notice requirement and not less than 30 days after commencement of suit for injunctive relief and after compliance with the notice requirement, the consumer may amend the complaint without leave to include a request for damages. (Civ. Code, § 1782, subd. (d).)

In the case at hand, there is no indication that Plaintiffs complied with the prelawsuit notice requirement and injunctive relief is not sought specifically as to the CLRA claim, only damages. Furthermore, the allegations only generically indicate that in placing the property on the market, Defendants represented that it was fit for human occupation or that there was an advertisement that implied as much, but both allegations are conclusory and not sufficiently particularly pled. (See Compl. at ¶¶ 191-192.)

Motion to Strike

Code of Civil Procedure section 436, subdivision (a) states that matters that are irrelevant, false, or improper are subject to a motion to strike. “Irrelevant” means any immaterial allegation, and “immaterial” means (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by a sufficient claim or defense, and (3) a demand for relief not supported by the allegations. (Code Civ. Proc., §431.10, subs. (b)-(c).) Additionally, all or part of a pleading not drawn or filed in conformity with the laws of this state, a court rule, or order of the court may be stricken. (Code Civ. Proc., §436, subd. (b).) The grounds to strike shall appear on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., §437.) Additionally, the court reads the allegations as a whole, with

all parts in their context, and assumes their truth. (*Spielholz v. Superior Court (Los Angeles Cellular Telephone Company)* (2001) 86 Cal.App.4th 1366, 1371.)

Moot Portion of Motion

The instant motion to strike is in part directed at allegations within the ninth cause of action under the CLRA. Given the tentative ruling to sustain with leave to amend as to the ninth cause of action, the motion is moot as to paragraphs 191, 196, 198, 199, and the prayer for relief under the CLRA.

Request for Punitive Damages and the Related Allegations

In the case at hand, the alleged property conditions were significant. Defendants were aware of the conditions and had the ability and opportunity to make repairs but refused to do so. Defendants also knew of the effects of the conditions upon Plaintiffs but still failed to act. These allegations give substance to the claims that Defendants acted intentionally, willfully, oppressively, despicably, maliciously, etc., and the averments therefore support the prayer for punitive damages.

As for the allegations that Defendants acted through their officers, directors, or managing agents, or the other allegations of agency, at the pleading stage generally all that is necessary are ultimate facts. Courts have permitted “allegations which obviously included conclusions of law and have termed them ‘ultimate facts’ or ‘conclusions of fact.’” (*Dino, Inc. v. Boreta Enterprises, Inc.* (1964) 226 Cal.App.2d 336, 340 [see *Peninsula, etc. [Properties] Co. v. County of Santa Cruz*, 34 Cal.2d 626, 629 [one is the ‘owner’ of property]; *Rannard v. Lockheed Aircraft Corp.*, 26 Cal.2d 149, 154 [act was ‘negligently’ done]; *May v. Farrell*, 94 Cal.App. 703, 707 [employee was ‘acting within the scope of his employment’].) As a result, the allegations regarding agency and authority to act in this case should similarly be seen as proper ultimate fact, especially when Defendants would have superior knowledge of such facts and, again, that superior knowledge lessens the pleading standard. (*Ibid.*)

As for the alleged ratification, case law also instructs that the failure to act can support a ratification theory. (See, e.g., *Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 619 [ratification is generally a question of fact, but, for instance, an employer’s failure to “investigate or respond to charges that an employee has committed an intentional tort” or the employer’s “failure to discharge the employee may be evidence of ratification” by the employer].)

Such a failure to act is alleged in this case and to the extent Defendants continued to employ its agents that refused to act despite the known facts and complaints, Defendants' continued employment of those individuals and the failure to act (e.g. correct the conditions) can be seen as ratification and the continued employment could also be seen as oppressive. (See, e.g., Compl. at ¶¶ 13 and 16.)

Fraud Allegations

As noted above, the allegations related to the CLRA are not sufficiently particularized. That same analysis applies as to the claimed fraud asserted in paragraphs 58 and the generic references to fraud in the context of the allegations that Defendants acted with "oppression, fraud, or malice."

Request for Relief under Civil Code section 1942.4

As the claim premised upon Civil Code section 1942.4 is sufficiently stated, so too is the request for attorney's fees and statutory damages.

UCL Language

Defendants take issue with allegations indicating they violated the UCL by engaging in unlawful, unfair, and fraudulent business practices. Defendants also take issue with item no. 5 of the prayer, which requests restitution under Business & Professions Code section 17200.

The Unfair Competition Law (UCL), as codified in Bus. & Prof. Code section 17200, *et seq.*, prohibits any unlawful, unfair or fraudulent business practice. The UCL is written in the disjunctive, which means a business act or practice can be alleged to be all or any of the three prongs. (*Berryman v. Merit Property Management, Inc.* (2007) 152 Cal.App.4th 1544, 1554.) The UCL was enacted "to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services." (*Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 135 [quoting *Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949].)

To successfully state a claim for violation of Section 17200, a plaintiff must allege that the defendant engaged in unlawful, unfair, or fraudulent business practices. (*Berryman, supra*, 152 Cal.App.4th at p. 1554.) Moreover, a claim for violation of the UCL must plead with reasonable particularity the facts that support the statutory elements of the violation. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 619.) In addition, a private plaintiff must be able to show economic injury caused by the unfair competition. (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 336.) By proscribing "any unlawful" business practice, the UCL essentially

borrowes the provisions of other laws and makes violations of those provisions independently actionable. (*Zhang v. Superior Court* (2013) 57 Cal.4th 364, 370.)

“Virtually any statute or regulation (federal or state) can serve as a predicate for a UCL unlawful practice cause of action.” (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1265, as modified on denial of reh’g (Feb. 22, 2018).) Restitution is also available under a UCL claim. (*Sepanossian v. National Ready Mixed Concrete Co.* (2023) 97 Cal.App.5th 192, 199.) As a result, Plaintiffs could potentially recover the money paid to Defendants for rent as restitution. The motion shall therefore be denied as to paragraph 138 of the Complaint, except as to the generic reference to fraud. The motion shall also be denied as to item no. 5 of the prayer, which seeks restitution under section 17200.

Request for Fees under Civil Code section 3304

Item 6 of the prayer Plaintiffs seek attorney’s fees under Civil Code section 3304, but that statute does not provide for attorney’s fees. “California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees” unless otherwise provided for by contract or statute. (*In re FairWageLaw* (2009) 176 Cal.App.4th 279, 288.)

RULING

- (1) Demurrer is OVERRULED as to the 1st cause of action under Civil Code section 1942.4.
- (2) Demurrer is OVERRULED as to the 7th cause of action for IIED.
- (3) Demurrer is OVERRULED as to the 8th cause of action for negligence per se.
- (4) Demurrer is SUSTAINED WITH LEAVE TO AMEND as to the 9th cause of action under the CLRA. The misrepresentation and fraud is not alleged with reasonable particularity, which is required. (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261, as modified on denial of reh’g (Feb. 22, 2018).) There are also no allegations that Plaintiffs complied with the prelawsuit notice requirements. (See Civ. Code, § 1782.)
- (5) Motion to strike paragraphs 191, 196, 198, and 199 of the Complaint is MOOT
- (6) Motion to strike item no. 6 of the prayer for relief under the CLRA is GRANTED, since the claim is no longer viable.
- (7) Motion to strike paragraphs 13, 16, 55, 57, 59, 63, 64, 65, 67, 68, 93, 96, 101, 102, 123, 135, 121, 155, 168, 169, 170, 171, 174, and 175 in addition to item no.’s 4, 7, and 12 of the prayer,

is DENIED. Motion to strike is GRANTED in part as it relates to the references to fraud in paragraphs 13, 16, 55, 58, 59, 97, and 138.

- (8) Motion to strike as to paragraph 111 of the Complaint and item no.'s 1 and 6 of the prayer for relief is DENIED.
- (9) Motion to strike paragraph 138 of the Complaint is DENIED. Motion to strike is GRANTED as to the generic reference to fraud. The motion is also DENIED as to item no. 5 of the prayer, which seeks restitution under section 17200.
- (10) Motion to strike item no. 6 and the prayer for attorney's fees under Civil Code section 3304 is GRANTED.
- (11) Plaintiff shall have 20 days to file and serve amended pleading.
- (12) Movant to give Notice.

TENTATIVE RULING FOR CIVSB2315002
Department S24 - Judge Carlos M. Cabrera

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Contreras, et al v. Ontario Grove Healthcare & Wellness Centre, LP, et al
Motion: Demurrer and Strike
Movant: Ontario Grove Healthcare & Wellness Centre, LP dba Bella Vista Healthcare Center (Ontario Grove/Defendant)
Respondent: Gregorio Contreras (Gregorio), Elia Contreras (Elia), and Noe Contreras (Noe) (individually by first name collectively, Plaintiffs)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On July 5, 2023, Plaintiffs filed a Complaint against Ontario Grove, alleging the following causes of action: (1) Battery; (2) Negligence; (3) IIED; (4) Statutory Breach of Warranty of Habitability (Civ. Code, §§ 1941, 1941.1); (5) Tortious Breach of Implied Warranty of Habitability; (6) Violation of Business & Professions Code §§ 17200, et seq.; (7) Breach of Covenant of Quiet Enjoyment; (8) Negligent Violation of Statutory Duty to Maintain Habitable Conditions; (9) Breach of Contract; (10) Private Nuisance; and (11) Public Nuisance. On March 18, 2026, Defendant filed a general demurrer to the First, Third, Fourth, Fifth, Sixth, Seventh, Ninth, Tenth, and Eleventh causes of action. Defendant also filed a Motion to Strike, seeking to strike all allegations relating to punitive damages. Plaintiffs oppose.

On June 22, 2026, the Court posted a tentative ruling and heard oral argument on the instant motions. The Court thereafter continued the hearing until August 31, 2026 and ordered supplemental briefing on the habitability and breach of contract issues. On August 7, 2026, Defendant filed a supplemental brief. Plaintiffs did not file a supplemental brief.

ANALYSIS

A demurrer is a pleading used to test the legal sufficiency of other pleadings, i.e., it raises issues of law, not fact, regarding the form or content of the opposing party's pleading. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) It is not the function of a demurrer to challenge the truthfulness of the complaint; and for purposes of the ruling on a demurrer, all facts pleaded in the complaint are assumed to be true however improbable they may be. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 966-967.) The court assumes the truth of all material facts

that have been properly pleaded, of facts that may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, the Court does “not accept as true contentions, deductions, or conclusions of fact or law.” (*In re Ins. Installment Fee Cases* (2012) 211 Cal.App.4th 1395, 1402, citing *Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) “[T]he question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Concerned Citizens of Costa Mesa, Inc. v. 32nd Agricultural Assn.* (1986) 42 Cal.3d 929, 936 (citations omitted).) The complaint is also to be liberally construed. (Code of Civ. Proc. §452.)

Meet and Confer

Defense counsel Colin Whittington filed a declaration which establishes that on March 10, 2026, at 3:41 p.m., he attempted to telephonically contact Plaintiffs’ Counsel, but no one answered the call. As a result, he left a detailed voicemail message regarding Defendant’s intent to meet and confer. Immediately following the telephone call, Attorney Whittington sent a detailed meet and confer letter to Plaintiffs’ Counsel via email. However, Plaintiffs never responded. (Whittington Decl. ¶¶ 2-4, Exh. A.) The court will find that Defendant has met their meet and confer requirement and will thus rule on the merits of the demurrer.

I. General Demurrer

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Pneumatic Tool Co. (1984) 152 Cal.App.3d 951, 955; *Michaelian v. State Compensation Insurance Fund* (1996) 50 Cal.App.4th 1093, 1104-1105.)

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First Cause of Action

The elements of civil battery are: (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with the plaintiff's person; (2) plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to plaintiff. (*Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 526-527.)

Despite Plaintiffs' repeated use of the words "intentionally," "deliberately," etc., there are no facts alleged demonstrating that defendant acted with the intent to cause a harmful or offensive contact. Such allegations, at most demonstrate a negligent omission, given that there is no allegation demonstrating that Defendant had prior knowledge of the bedbug infestation in Plaintiffs' room or the Rehabilitation Center.

Third Cause of Action

To state a cause of action for intentional infliction of emotional distress a plaintiff must show: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.)

In the case at hand, the elements of intent and damages are insufficiently plead. Similar to Plaintiff's battery claim as discussed above, the element of defendant's intention of causing or reckless disregard of the probability of causing emotional distress is not sufficiently plead.

Fourth, Fifth, Seventh and Ninth Cause of Action

Defendant argues that Plaintiffs' Fourth (Statutory Breach of Warranty of Habitability), Fifth (Tortious Breach of Implied Warranty of Habitability), Seventh (Breach of Covenant of Quiet Enjoyment), and Ninth (Breach of Contract) causes of action are insufficiently plead on the grounds that although Plaintiffs have alleged that there was a written lease agreement created on July 5, 2021 (see Compl. ¶¶ 73, 96, 136), Plaintiffs have failed to allege any specific breach of any material provision of the purported lease agreement, a copy of which is also omitted from the Complaint.

However, "a warranty of habitability is implied by law in residential leases." (*Green v. Superior Court* (1974) 10 Cal.3d 616, 637.) The implied warranty imposes upon the landlord the obligation to maintain leased dwellings in a habitable condition throughout the term of the lease. (*Smith v. David* (1981) 120 Cal.App.3d 101, 109.) Similarly, every lease agreement also includes an implied covenant of quiet enjoyment protecting the lessee from any act or omission by the lessor which interferes with the lessee's right to use and enjoy the premises for the purposes contemplated by the lease. (*Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC* (2011) 192 Cal.App.4th 1183, 1191; Civ. Code § 1927.)

Furthermore, in *Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 198-199, the California Supreme Court discussed that a plaintiff may plead a contract's legal effect, rather than pleading its terms verbatim or attaching a copy. As such, Plaintiffs were not required to attach a fully signed copy of the lease agreement in order to sufficiently state a valid breach of contract claim.

Defendant argues that Plaintiffs' Fourth (Statutory Breach of Warranty of Habitability), Fifth (Tortious Breach of Implied Warranty of Habitability), Seventh (Breach of Covenant of Quiet Enjoyment), and Ninth (Breach of Contract) causes of action fail because there was no residential tenancy involved in this Action. However, the Complaint alleges that the Parties entered into a lease or rental agreement and that Plaintiffs held a leasehold interest in the Rehabilitation Center. (See Compl. ¶¶ 73, 82, 96, 123, 131, 136.) In general, a demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law). (*290 Division (EAT), LLC v. City and County of San Francisco* (2022) 86 Cal.App.5th 439, 452.) Furthermore, "the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Hacker v. Homeward Residential, Inc.* (2018) 26 Cal.App.5th 270, 280.)

While Defendant argues that the assertion that the purported written agreement is a lease agreement is a legal conclusion that should not be accepted as true on demurrer, there is equally no support in the four corners of the Complaint demonstrating that Plaintiffs entered into an admission agreement for medical services. Although there is a reasonable debate as to whether Plaintiff G. Contreras had actually entered into a lease agreement, as opposed to a skilled nursing facility admission agreement, the question of Plaintiffs' ability to prove unlikely allegations, or possible difficulties in making such proof, is of no concern in ruling on a demurrer. (*Committee On Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214, superseded by statute on other grounds.) Furthermore, where an ambiguous contract is the basis of an action, the plaintiff's interpretation must be accepted as correct in testing the sufficiency of the complaint. (*Aragon-Haas v. Family Security Ins. Services, Inc.* (1991) 231 Cal.App.3d 232, 239.)

Sixth Cause of Action

Business and Professions Code section 17200, also known as the Unfair Competition Law ("UCL"), defines unfair competition to include any unlawful, unfair, or fraudulent business act or practice. (*Cel-Tech Comm., Inc. v. Los Angeles Cellular Tel. Co.* (1999) 20 Cal.4th 163, 180.) The

purpose of the UCL “is to protect both consumers and competitors by promoting fair competition in commercial markets for goods and services.” (*Kasky v. Nike, Inc.* (2002) 27 Cal.4th 939, 949.) Because the UCL is written in the disjunctive, it establishes three varieties of unfair competition—acts or practices which are unlawful, or unfair, or fraudulent.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal.App.4th 632, 647.)

In regard to the “unlawful” prong, the Court in *Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal.App.4th 1342, 1383, explains that it “borrows violations of other laws ... and makes those unlawful practices actionable under the UCL.” (*Lazar v. Hertz Corp.* (1999) 69 Cal.App.4th 1494, 1505.) “‘[V]irtually any law or regulation—federal or state, statutory or common law— can serve as [a] predicate for a ... [section] 17200 ‘unlawful’ violation.’ [Citation].” (*Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 681.)

As for the “unfair” prong, a business practice is “unfair” if (1) the consumer injury is substantial; (2) the injury is not outweighed by any countervailing benefits to consumers or competition; and (3) the injury could not reasonably have been avoided by consumers themselves. (*Camacho v. Automobile Club of Southern California* (2006) 142 Cal.App.4th 1394, 1403.)

On the other hand, a business practice is “fraudulent” if it is “likely to deceive the public. [Citations.] It may be based on representations to the public which are untrue, and “‘also those which may be accurate on some level, but will nonetheless tend to mislead or deceive.... A perfectly true statement couched in such a manner that it is likely to mislead or deceive the consumer, such as by failure to disclose other relevant information, is actionable under’” the UCL. [Citations.] The determination as to whether a business practice is deceptive is based on the likely effect such practice would have on a reasonable consumer. [Citation.]” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1471.)

Aside from the allegation that Defendant engaged in unlawful practices, Plaintiffs also allege that Defendant violated Civil Code section 1941 (see Compl. ¶ 113), which requires the “lessor of a building intended for the occupation of human beings must, in the absence of an agreement to the contrary, put it into a condition fit for such occupation, and repair all subsequent dilapidations thereof, which render it untenable, except such as are mentioned in section nineteen hundred and twenty-nine.” Such allegation, in conjunction with Plaintiffs’ general allegations that Defendant failed to provide Plaintiffs with a habitable unit for Plaintiffs’ occupation, is sufficient to state a UCL violation under the unlawful prong.

Seventh Cause of Action

The elements of a claim for breach of the covenant of quiet enjoyment are (1) a lease agreement between plaintiff and defendant, (2) absence of language contrary to the implied covenant that tenant shall have quiet enjoyment and possession, (3) act or omission of the landlord which “substantially interfere[s] with a tenant[‘s] right to use and enjoy the premises for the purposes contemplated by the tenancy”; and (4) an applicable remedy. (*Andrews v. Mobile Aire Estates* (2005) 25 Cal.App.4th 578, 588-591.)

The implied covenant of quiet enjoyment and possession is breached when there is a wrongful actual or constructive eviction of the tenant. (*Standard Live Stock Co v. Pentz* (1928) 204 Cal. 618, 625.) There is a constructive eviction when there is a substantial and material interference with the tenant’s beneficial use and enjoyment of the premises, even though the tenant is not actually deprived of occupancy. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 925-926 [holding that “[a] constructive eviction occurs when the acts or omissions ... of a landlord, or any disturbance or interference with the tenant’s possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or which has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.”].)

In the case at hand, the Complaint alleges that Plaintiffs suffered bites and rash-like injuries while Gregorio was admitted to the Rehabilitation Center. After investigation of Plaintiff’s complaints, Defendant conducted a spray and bedbugs were discovered. Thereafter, Gregorio checked out of the Rehabilitation Center on August 28, 2021. (See Compl. ¶¶ 13-18.) These allegations are insufficient to demonstrate that Plaintiffs left the Rehabilitation Center because there were continuing inhabitable conditions present in Gregorio’s room. As such, Plaintiffs have not sufficiently alleged an actual or constructive eviction.

Tenth Cause of Action

The elements of an action for private nuisance are: (1) the plaintiff must prove an interference with his use and enjoyment of its property; (2) the invasion of the plaintiff’s interest in the use and enjoyment of the land must be substantial, i.e., it caused the plaintiff to suffer substantial actual damage; and (3) the interference with the protected interest must not only be substantial, it must also be unreasonable, i.e., it must be of such a nature, duration, or amount as

to constitute unreasonable interference with the use and enjoyment of the land. (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1176.)

In the case at hand, while not discussed by the parties, in *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181 (*Lynch*), the *Lynch* Court criticized the holding in *El Escorial Owner's Assn. v. DLC Plastering, Inc.* (2007) 154 Cal.App.4th 1337 (*El Escorial Owner's Assn.*) and stated “[n]uisance is an entirely separate cause of action from negligence, and the analysis should focus on whether the plaintiff has alleged all necessary elements of the claim,” and that assessing nuisance as duplicative of a negligence claim “ignores the fact that a duty between defendant and plaintiff need not exist to maintain a nuisance claim.” (*Id.* at p. 1198.)

Eleventh Cause of Action

The elements of public nuisance are as follows: (1) defendant, by acting or failing to act, created a condition that was either harmful to health or obstructed the free use of property, interfering with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people simultaneously; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) plaintiff did not consent to the conduct; (6) plaintiff suffered harm distinct from that suffered by the general public; and (7) defendant's conduct was a substantial factor in causing plaintiff's harm. (*Birke v. Oakwood Worldwide* (2009) 169 Cal.App.4th 1540, 1548.)

In the case at hand, the Complaint merely alleges that the uninhabitable, unhealthy, and unsanitary conditions affecting Plaintiffs' unit would affect the community at large because the infestation can easily be spread. (See Compl. ¶ 151.) In order to allege a claim for public nuisance, Plaintiffs were required to plead actual harm, as opposed to speculative harm to the public. Plaintiffs also generally conclude that their “use and enjoyment of his unit was greatly affected, which is separate from the harm suffered by the general public” (Compl. ¶ 152), all without describing the unique harm that they purportedly suffered. These allegations are insufficient.

II. Motion to Strike

Motions to strike can be used to strike any “irrelevant, false or improper matter inserted in any pleading,” or to strike any pleading or part thereof “not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) The grounds to strike shall appear either on the face of the challenged pleading or from matters that are judicially noticed. (Code Civ. Proc., § 437.) Additionally, the court reads the allegations as a whole, with all

parts in their context, and assumes their truth. (*Spielholz v. Superior Court (Los Angeles Cellular Telephone Company)* (2001) 86 Cal.App.4th 1366, 1371.)

Defendant seeks to strike out all allegations relating to punitive damages in Paragraphs 47, 67, 71, 93, 94, 109, 110, 129, and Prayer No. 8. However, this motion is now moot in light of the tentative ruling to sustain the demurrer within leave to amend as to the First, Third, and Seventh causes of action.

RULING

1. Defendant's request for Judicial Notice is GRANTED.
2. Demurrer
 - a. Defendant's demurrer to the First Cause of Action for Battery, is SUSTAINED WITH LEAVE TO AMEND;
 - b. Defendant's demurrer to the Third Cause of Action for IIED, is SUSTAINED WITH LEAVE TO AMEND;
 - c. Defendant's demurrer to the Fourth, Fifth, Seventh, and Ninth causes of action, is OVERRULED;
 - d. Defendant's demurrer to the Sixth Cause of Action for UCL Violations is OVERRULED;
 - e. Defendant's demurrer to the Seventh Cause of Action for Breach of the Covenant of Quiet Enjoyment, is SUSTAINED WITH LEAVE TO AMEND;
 - f. Defendant's demurrer to the Tenth Cause of Action for Private Nuisance is OVERRULED;
 - g. Defendant's demurrer to the Eleventh Cause of Action for Public Nuisance, is SUSTAINED WITH LEAVE TO AMEND;
3. Motion to Strike is deemed MOOT
4. Movant to give Notice